

SENATE FLOOR VERSION

March 4, 2026

COMMITTEE SUBSTITUTE
FOR

SENATE BILL NO. 1806

By: Paxton and Nice

[foster care - foster care services - qualifications
- rules - funding - Oklahoma Adoption Code -
applicability - benefits - construction -
codification - effective date -

emergency]

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified
in the Oklahoma Statutes as Section 1-7-112a of Title 10A, unless
there is created a duplication in numbering, reads as follows:

A. The Department of Human Services shall implement an
extension of foster care services to support individuals
transitioning into adulthood who meet the requirements provided by
this section. Participation in extended services under this section
shall be a voluntary election by the qualifying individual.
Services shall be available to any individual in this state who
meets the requirements of subsection B of this section and who:

1 1. Was in the custody of the Department at the time of the
2 individual's eighteenth birthday but is less than twenty-one (21)
3 years of age; or

4 2. Achieved legal permanency by guardianship or adoption at
5 sixteen (16) years of age or older but is less than twenty-one (21)
6 years of age and the individual does not receive care from the
7 parent or legal guardian.

8 B. Any individual described in subsection A of this section may
9 receive extended services from the Department under this section if
10 the individual is:

11 1. Completing secondary education or a program leading to an
12 equivalent credential;

13 2. Enrolled in an institution that provides postsecondary or
14 vocational education;

15 3. Participating in a program or activity designed to promote,
16 or remove barriers to, employment;

17 4. Employed for at least eighty (80) hours per month; or

18 5. Incapable of doing any of the activities described in
19 paragraphs 1 through 4 of this subsection due to a medical
20 condition, which incapability is supported by regularly updated
21 information in the case plan of the individual. In such a case, the
22 individual shall be in compliance with a course of treatment as
23 recommended by the Department.
24

1 C. 1. The Director of Human Services shall promulgate rules to
2 implement the provisions of this section.

3 2. The Department of Human Services shall seek available
4 funding to implement the provisions of this section.

5 SECTION 2. AMENDATORY 10 O.S. 2021, Section 7505-1.1, is
6 amended to read as follows:

7 Section 7505-1.1. A. Unless otherwise ordered by the district
8 court exercising jurisdiction over the adoption proceeding, all
9 hearings held in proceedings pursuant to the Oklahoma Adoption Code
10 shall be confidential and shall be held in closed court without
11 admittance of any person other than interested parties and their
12 counsel.

13 B. All papers, records, and books of proceedings in adoption
14 cases and any papers, records, and books relating to such
15 proceedings:

16 1. Shall be kept as a permanent record of the court and
17 maintained in a separate file by the court clerk; and

18 2. Shall be confidential and shall not be open to inspection or
19 copy except as authorized in Sections 7504-1.2, 7505-3.2, 7505-6.6,
20 7508-1.2, and 7508-1.3 of this title or upon order of a court of
21 record for good cause shown.

22 C. Upon application and notice to the person or agency in whose
23 possession the records being sought are held, and for good cause
24 being shown, any court of record may, by written order reciting its

1 findings, permit the necessary information to be released, or may
2 restrict the purposes for which it shall be used. The findings
3 shall include the reasons the information being sought cannot be
4 obtained through the methods authorized by Sections 7504-1.2, 7505-
5 3.2, 7505-6.6, 7508-1.2, and 7508-1.3 of this title.

6 D. The provisions of this section shall not prohibit ~~persons~~:

7 1. Persons employed by the court, the Department of Human
8 Services, a child-placing agency, an attorney participating or
9 assisting in a direct placement adoption or any physician, minister,
10 or other person or entity assisting or participating in an adoption
11 from providing partial or complete identifying information between a
12 biological parent and prospective adoptive or adoptive parent if a
13 biological parent and a prospective adoptive or adoptive parent
14 mutually agree to share specific identifying information and each
15 gives written, signed notice of their agreement to the court, the
16 Department of Human Services, the child-placing agency, or any
17 attorney participating or assisting in the direct placement adoption
18 pursuant to the Oklahoma Adoption Code; or

19 2. The Department from sharing adoptive information necessary
20 to ensure continuity of care for an adoptee who wishes to
21 participate in extended foster care services under Section 1 of this
22 act or sharing adoptive information necessary to carry out the
23 Department's duties under Section 7510-1.5 of this title.

1 E. Any person in charge of adoption records or having access to
2 adoption records or information who discloses any information,
3 including, but not limited to, all records and reports relevant to
4 the case and any records and reports of examination of the minor's
5 parent or other custodian pertaining to an adoption proceeding,
6 contrary to the provisions of this section, upon conviction thereof,
7 shall be guilty of a misdemeanor.

8 SECTION 3. AMENDATORY 10 O.S. 2021, Section 7510-1.5, is
9 amended to read as follows:

10 Section 7510-1.5. A. 1. When a parent or parents are found
11 and approved for adoption of a child who is determined by the
12 Department of Human Services to be eligible for adoption assistance
13 pursuant to the Oklahoma Adoption Assistance Act, and before the
14 final decree of adoption is entered, there must be a signed written
15 agreement between the prospective adoptive parent or parents and the
16 Department.

17 2. Adoption assistance in individual cases may commence with
18 the adoptive placement or at the time of finalization of the
19 adoption. Adoption assistance may be for special services only, or
20 for monthly money payments, and either for a limited period, or for
21 a long term, or for any combination of the foregoing.

22 Eligibility for and the rate of monthly adoption assistance
23 payments shall be determined by the Department in accordance with
24 rules promulgated by the ~~Commission for~~ Director of Human Services.

1 B. When an otherwise eligible child is determined to have a
2 causative, preexisting condition which was not identified or known
3 prior to the legal finalization of the adoption and which has
4 resulted in a severe medical or psychiatric condition that requires
5 extensive treatment, hospitalization, or institutionalization, an
6 adoption assistance agreement may be approved by the Department
7 after the final decree of adoption has been entered. In the event
8 an adoption assistance agreement is approved that provides for
9 monthly adoption assistance payments, the adoptive parents may also
10 be entitled to receive retroactive adoption assistance payments for
11 a period not to exceed the two (2) months prior to the date the
12 adoption assistance agreement was approved.

13 C. Any child who met the requirements of the provisions of
14 Sections 7510-1.2 and 7510-1.4 of this title, and was determined
15 eligible for Oklahoma adoption assistance with respect to a prior
16 adoption, and is available for adoption because the prior adoption
17 has been dissolved and the parental rights of the adoptive parents
18 have been terminated or because the adoptive parents of the child
19 have died, shall be eligible for Oklahoma adoption assistance with
20 respect to any subsequent adoption.

21 D. 1. When adoption assistance benefits are for more than one
22 (1) year, the Department shall send the adoptive parent or parents
23 an Adoption Assistance Annual Review request and assure that the
24 child who has attained the minimum age for compulsory school

1 attendance and is eligible for an adoption assistance payment under
2 Title IV-E of the Social Security Act, 42 U.S.C., Section 670 et
3 seq. is:

- 4 a. enrolled in an institution that provides elementary or
5 secondary education as determined under the law of
6 this state or other jurisdiction in which the
7 institution is located,
- 8 b. instructed in elementary or secondary education by any
9 other means legally authorized,
- 10 c. in an independent study elementary or secondary
11 education program in accordance with the law of this
12 state or other jurisdiction in which the program is
13 located, that is administered by the local school or
14 school district, or
- 15 d. incapable of attending school on a full-time basis due
16 to a documented medical condition supported by regular
17 updates.

18 2. The adoptive parent or parents shall at all times keep the
19 Department informed of circumstances including, but not limited to,
20 whether the adoptive parent or parents continue to be legally
21 responsible for support of the child which would make them
22 ineligible for such assistance payments or eligible for assistance
23 payments in a different amount.

1 3. The Department is authorized and directed to make a review
2 of each adoption assistance agreement annually to assure that the
3 parents are fulfilling their obligations under the agreement.

4 4. No payment may be made to any parents with respect to any
5 child who has attained the age of eighteen (18) years, except:

6 a. with respect to an adoption assistance agreement
7 entered into prior to the effective date of this act,
8 a child may continue to receive assistance until the
9 child reaches the age of nineteen (19) years if the
10 child:

11 ~~a.~~ (1) continues to attend high school or pursues
12 General ~~Education~~ Educational Development, or
13 ~~b.~~ (2) meets the criteria for an adoption assistance
14 difficulty of care rate as determined by the
15 Department, or

16 b. with respect to all other adoption agreements, an
17 individual who attained sixteen (16) years of age
18 prior to the effective date of the adoption assistance
19 agreement may continue to receive assistance until the
20 individual reaches twenty-one (21) years of age if the
21 individual is:

22 (1) completing secondary education or a program
23 leading to an equivalent credential,
24

- 1 (2) enrolled in an institution that provides
2 postsecondary or vocational education,
3 (3) participating in a program or activity designed
4 to promote, or remove barriers to, employment,
5 (4) employed for at least eighty (80) hours per
6 month, or
7 (5) incapable of doing any of the activities
8 described in divisions 1 through 4 of this
9 subparagraph due to a medical condition, which
10 incapability is supported by regularly updated
11 information in the case plan of the individual.

12 5. Termination or modification of the adoption assistance
13 agreement may be requested by the adoptive parent or parents at any
14 time.

15 6. No payment may be made to adoptive parents if the Department
16 determines that the parents are no longer legally responsible for
17 the support of the child or that the child is no longer receiving
18 any financial support from such parents.

19 E. A child for whom an adoption assistance agreement has been
20 reached with the Department shall remain eligible and receive
21 adoption assistance benefits regardless of the domicile or residence
22 of the adopting parent or parents at any given time.

23 F. All records regarding adoption assistance shall be
24 confidential and may be disclosed only in accordance with the

1 provisions of the Oklahoma Adoption Code; provided, that nothing in
2 this subsection shall be construed to prohibit the Department from
3 disclosing the amount of adoption assistance paid on behalf of a
4 child to:

5 1. A judge presiding over a matter in which support or custody
6 of the subject child is at issue; or

7 2. The Department's Office of Inspector General, for purposes
8 of investigating allegations of fraud against the State of Oklahoma
9 or its programs.

10 SECTION 4. This act shall become effective July 1, 2026.

11 SECTION 5. It being immediately necessary for the preservation
12 of the public peace, health or safety, an emergency is hereby
13 declared to exist, by reason whereof this act shall take effect and
14 be in full force from and after its passage and approval.

15 COMMITTEE REPORT BY: COMMITTEE ON APPROPRIATIONS
16 March 4, 2026 - DO PASS
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